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August 6, 2026

Open Records Division
Office of the Attorney General
P.O. Box 12548
Austin, Texas 78711-2548

Re: Requestor's Supplemental Comments Under Section 552.304 — Frisco Independent School District, PIR W005970-062526, District file no. 5970; Texas.gov Request ID 66439236

To the Open Records Division:

I submitted comments under Section 552.304 on July 30, 2026, Trace Number 302OR70593202. The District filed its brief under Section 552.301(e) on August 6, 2026. I submit these supplemental comments to address that brief.

1. The District has abandoned two of the five exceptions it originally asserted.

The District's July 30, 2026 letter asserted Sections 552.101, 552.103, 552.110, 552.1101, and 552.117. Its August 6 brief argues only Sections 552.103 and 552.117, and its concluding summary omits Sections 552.110 and 552.1101 entirely. Those two exceptions have therefore not been supported by any argument or evidence in the brief the statute requires. I ask that they be treated as abandoned. As set out in my July 30 comments, Section 552.1101 may be asserted only by a vendor or contractor in the manner described by Section 552.305(b), and Section 552.110 requires specific factual evidence of a third party's protected interest together with the notice Section 552.305(d) requires. The District identified no third party and gave no indication that notice was attempted.

2. Section 552.101 appears in the summary but is nowhere argued.

The concluding paragraph of the brief asks that the information be withheld under Sections 552.101, 552.103, and 552.117. The brief contains headed argument sections for Sections 552.103 and 552.117 only. Section 552.101 is never mentioned in the body, and no law making any responsive information confidential is identified. Section 552.301(e)(1)(A) requires a governmental body to submit written comments stating the reasons why the stated exceptions apply. A bare listing in a summary paragraph does not satisfy that requirement, and Section 552.101 should not be considered.

3. Section 552.103 does not apply to the party against whom it is asserted.

The District's entire Section 552.103 argument rests on a proceeding in which I am the opposing party. It cites my Petition for Review before the Commissioner of Education, Docket No. 120-R10-06-2026, and an email I sent on May 20, 2026 indicating I might pursue state court relief. This Division has consistently held that Section 552.103 permits withholding only of information the opposing party in the litigation has not seen or had access to. The District is not asking to withhold information from a stranger to the proceeding. It is asking to withhold information from the petitioner in the proceeding it identifies.

4. The stated rationale for Section 552.103 has no application to an appeal under Section 7.057.

The District correctly states, citing Open Records Decision No. 551, that the purpose of Section 552.103 is to prevent the Act from being used to circumvent the rules of discovery, and to force parties seeking litigation related information to obtain it through discovery procedures. That rationale fails here. An appeal to the Commissioner under Section 7.057 is not a discovery proceeding. Under 19 Texas Administrative Code Section 157.1073, the appeal is decided on the local record the district itself creates and files, and the Commissioner's review is limited to that record. There is no discovery mechanism in the proceeding the District identifies. Withholding under Section 552.103 therefore does not channel me toward discovery; it forecloses access entirely. The exception cannot serve a purpose the proceeding makes impossible.

5. The District's position before the Commissioner contradicts its position here.

The District tells this Division that the proceeding before the Commissioner constitutes pending litigation sufficient to except records from disclosure. On July 30, 2026, the same day it sent its ruling request, the District filed a Plea to the Jurisdiction in that proceeding arguing that the Commissioner lacks jurisdiction and that the appeal must be dismissed in its entirety for incurable jurisdictional defects. The District cannot characterize the proceeding as litigation robust enough to justify withholding public records while simultaneously arguing that the tribunal has no power to hear it.

6. The threatened state court litigation the District relies on was resolved before the request.

The brief relies on my May 20, 2026 email stating that I would proceed to state courts. I did. Cause No. 493-04795-2026 was filed in the 493rd District Court of Collin County and was nonsuited without prejudice on July 11, 2026, with the nonsuit accepted July 13, 2026. That was more than two weeks before the District's ruling request and more than three weeks before this brief. The District has not disclosed the nonsuit to this Division in either filing. A statement of intent that has since been acted on and concluded cannot establish reasonably anticipated litigation.

7. The records at issue are not related to the proceeding the District identifies.

Section 552.103 requires that the information at issue be related to the litigation asserted. The operative request, as modified on July 16, 2026, seeks five categories: versions of the Iron Horse Aquatics Swim Team Handbook, the revision history of two identified Google Workspace files, domain registration and hosting records for ironhorseaquatics.net, and signed parent acknowledgments of the Parent Code of Conduct. The brief offers a single sentence of connection, asserting that the records relate to my complaint regarding my student's placement on the swim team. Domain registration and hosting payment records for a website have no bearing on a student placement dispute. Neither does document revision metadata. The District has not carried its burden of showing a relationship between these specific records and the identified proceeding.

8. The handbook is published to the public.

The Iron Horse Aquatics Swim Team Handbook is posted on a publicly accessible website that any member of the public may read today. I printed a version of it from that website on May 3, 2026 and used it at a District grievance conference. The District's own filing in the Commissioner proceeding attaches web page printouts it made on July 15, 2026. Information the District publishes to the world cannot be excepted from disclosure to a single requestor under Section 552.103.

9. Section 552.117 authorizes redaction, not withholding in the entirety.

The brief asks that Exhibit D be withheld in its entirety, while separately arguing that portions containing personal telephone numbers, home addresses, and personal email addresses of District personnel should be withheld under Section 552.117. Section 552.117 is a redaction provision addressed to specific categories of personal identifying information. It does not authorize withholding whole documents, and the District's own alternative request acknowledges as much. Of the five categories in the operative request, four consist of handbook versions, document revision metadata, and domain registration records, none of which would ordinarily contain an employee home address. The fifth consists of parent signatures on a program policy document, to which Section 552.117 does not apply at all, since it protects public employees rather than parents.

10. Requested relief.

I ask the Division to treat Sections 552.110 and 552.1101 as abandoned; to decline to consider Section 552.101 as unbriefed; to reject the assertion under Section 552.103 on the grounds that I am the opposing party in the identified proceeding, that the proceeding affords no discovery, that the District simultaneously denies the tribunal's jurisdiction, that the threatened state court litigation was nonsuited before the ruling request, and that the specific records sought bear no demonstrated relationship to the proceeding; to hold that Section 552.117 permits redaction rather than wholesale withholding; and to order the responsive information released.

11. Two procedural matters.

First, the brief states at page 3 that the District requested the opinion and stated the exceptions on July 29, 2026. The letter I received bears the date July 30, 2026 and was transmitted to me on that date. I note the discrepancy without argument, and defer to the Division's records as to the date of filing.

Second, the brief states that any responsive documents not subject to the ruling request have been released to me. No records have been released to me in this matter. I ask that the District be directed to identify what, if anything, it contends was released, and to provide me with the complete exhibits accompanying its submission, having furnished only partial exhibits.

Respectfully submitted,

/s/Stephen Ray Jordan
Stephen Ray Jordan
Requestor